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TRUMP, PRESIDENT OF THE UNITED STATES, ET AL. *v.* SLAUGHTER

CERTIORARI BEFORE JUDGMENT TO THE UNITED STATES COURT OF APPEALS FOR THE DISTRICT OF COLUMBIA CIRCUIT

No. 25–332. Argued December 8, 2025—Decided June 29, 2026

The Federal Trade Commission (FTC) is a regulatory agency that has accumulated vast rulemaking, enforcement, and adjudicatory powers. The FTC's powers belong not to the President or his appointees alone, but instead to five Commissioners, each of whom serves for seven years and may be removed by the President only "for inefficiency, neglect of duty, or malfeasance in office." 15 U. S. C. § 41.

Soon after President Trump began his second term in January 2025, he fired the FTC's two Democratic appointees, Rebecca Slaughter and Alvaro Bedoya. He did not identify a cause under the statute. He instead told them their "continued service on the FTC [was] inconsistent with [his] Administration's priorities" and that they were removed "pursuant to [his] authority under Article II of the Constitution." App. 28. Slaughter filed suit against the President and other executive officials, seeking relief to restore her to office. She argued that her removal was ultra vires, violated the Administrative Procedure Act, and violated the Constitution. The District Court granted Slaughter's motion for summary judgment. It acknowledged that *Myers* v. *United States*, 272 U. S. 52, generally permits the President to remove executive officers at will, but explained that *Humphrey's Executor* v. *United States*, 295 U. S. 602, carved out an exception for the FTC. The court declared the President's "purported removal" ultra vires and issued a permanent injunction barring interference "with Ms. Slaughter's right to perform her lawful duties." App. 90–91. A divided Court of Appeals denied the Government's motion for a stay pending appeal, and this Court stayed the District Court's order and granted certiorari before judgment.

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Held: The FTC's for-cause removal provision is contrary to the separation of powers enshrined in the Constitution. Pp. 431–464.

(a) The Constitution vests "[t]he executive Power" in a "President of the United States of America" and instructs that he "take Care that the Laws be faithfully executed." Art. II, §§ 1, 3. To vest the executive power in one person was to establish a hierarchy—a "Chief Magistrate" with whom the buck stops, and below him various "assistants or deputies" who "derive their offices from his appointment" and remain "sub-

ject to his superintendence." The Federalist No. 72, p. 436 (C. Rossiter ed.) (A. Hamilton). To remain accountable to the President, those officers must be removable by the President. Pp. 433–442.

(1) The idea that one President would be in charge was by no means a foregone conclusion in 1787. The flurry of state constitutions that followed the Declaration of Independence "made of the gubernatorial magistrate a new kind of creature, a very pale reflection indeed of his regal ancestor." G. Wood, The Creation of the American Republic, 1776–1787, p. 136. Almost every State had but a nominal Governor, who could act only with his council's consent. These early chief executives were "little more than chairmen of their executive boards." *Id.*, at 138.

The Framers chose to depart from this model, for they had seen its flaws up close. For "fear" of "monarchical . . . power," William Livingston lamented, the States "improvidently" had devised executives "too weak & inefficatious to operate with proper energy & vigour." 5 Papers of William Livingston 56–57 (C. Prince, M. Lustig, D. Vorhees, & R. Weiss eds.). Thus when delegates at the Constitutional Convention objected to "unity in the Executive magistracy" as "the foetus of monarchy," 1 Records of the Federal Convention of 1787, p. 66 (M. Farrand ed.) (E. Randolph), others replied that the concern was quite backward. "[I]nstead of being the fetus of Monarchy," they explained, "[u]nity in the Executive" was "the best safeguard against" it—for only a "single Person" could produce the "vigor and activity" necessary to preserve the Constitution's separation of powers. *Id.*, at 66, 109 (J. Wilson).

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In opting for one President, however, the Framers did not opt for the President to work alone. They knew that Congress would "institut[e] the great Departments" and allow the President to "appoint[ ] officers therein, to assist [him] in discharging the duties of his trust." 30 Writings of George Washington 334 (J. Fitzpatrick ed.). These officers were to serve as envoys of the President, not his equals. They "ought to be considered as the assistants or deputies of the Chief Magistrate," Hamilton explained, "and on this account, they ought to derive their offices from his appointment, at least from his nomination, and ought to be subject to his superintendence." The Federalist No. 72, at 436.

Because these officers were subject to the President's superintendence, they had to be removable by him at will. The power to remove at will was a necessary corollary of the Constitution's design. The "unity" of the Executive Branch would be "destroyed" if it were vested "ostensibly in one man, subject in whole or in part to the control and co-operation of others, in the capacity of counselors to him." *Id.*, No. 70, at 424 (A. Hamilton). Text and structure thus both taught that the

President had to be able to remove those who fail to live up to their duties, lest he fail to live up to his.

(2) This aspect of the President's role was confirmed in the Constitution's first year and the years that followed, resulting in a "regular course of practice" that "liquidate[d] & settle[d]" the President's power of removal. 8 Writings of James Madison 450 (G. Hunt ed.).

When the First Congress met in 1789, one of its first tasks was to establish the first executive departments—and with them the first department heads. Under the Constitution, those officers had to be appointed by the President, with the "Advice and Consent" of the Senate. Art. II, § 2, cl. 2. The question before Congress was how those officers were to be removed. Madison contended that removal was part of "the Executive power" vested in the President, which "the Legislature has no right to diminish or modify." 1 Annals of Cong. 463. It is only with that power, he explained, that "the chain of dependence [can] be preserved"—"the lowest officers, the middle grade, and the highest" made to "depend, as they ought, on the President, and the President on the community." *Id.*, at 499.

Madison emerged victorious, and Congress's confirmation of the President's power gained fame as "the Decision of 1789." Chief Justice Marshall described the decision as "a full expression of the sense of the legislature," 5 J. Marshall, The Life of George Washington 199–200, and early Presidents of all persuasions agreed. Pp. 438–442.

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(b) What text, history, and structure settle, the Court's precedent confirms—the President may remove his subordinates at will. Pp. 442–453.

(1) As early as 1839, the Court reaffirmed what the First Congress had held. It was "very early adopted, as the practical construction of the Constitution," the Court noted, that the power "to remove, where the tenure of the office was not fixed by the Constitution," was "vested in the President alone." *Ex parte Hennen*, 13 Pet. 230, 259. See also *Parsons* v. *United States*, 167 U. S. 324, 330 ("[T]he decision of Congress in 1789, and the universal practice of the Government under it, ha[s] settled the question beyond any power of alteration").

The Court's landmark decision in *Myers* v. *United States*, 272 U. S. 52, confirmed the President's power to fire his subordinates at will. The case arose when President Wilson fired Frank Myers—the postmaster in Portland, Oregon—without consulting the Senate, notwithstanding an 1876 statute that required the President to receive the "advice and consent of the Senate" not only to *appoint* postmasters but also to *remove* them. § 6, 19 Stat. 80. Writing for the Court, Chief Justice Taft noted that in the wake of the political differences following the Civil War between President Johnson—a Jacksonian Democrat—and congres-

sional Republicans, Congress had sought to "curtail the then acknowledged powers of the President" with the Tenure of Office Act. *Myers*, 272 U. S., at 165–166. Under that law, the President was required to receive the Senate's consent before firing most officers. See *ibid.* "[T]he injury and invalidity" of the Act was "immediately recognized by the Executive and objected to"—and not just by President Johnson, but by General Grant who succeeded him. *Id.*, at 167. What these events revealed, Chief Justice Taft wrote, was a consistent Presidential rejection of "the validity of such legislation" as incompatible with "the legislative action of 1789." *Id.*, at 172–173.

The law concerning postmasters thus raised the question whether "to set aside" the First Congress's "construction, thus buttressed, and adopt an adverse view" contrary to the Constitution's text, history, and structure. *Id.*, at 175. The Court refused to do so, and instead hewed to the "constitutional construction . . . reached by the First Congress . . . and acquiesced in by the whole Government for three-quarters of a century." *Id.*, at 176. Pp. 442–445.

(2) Nine years after *Myers*, the Court decided *Humphrey's Executor* v. *United States*. Pp. 445–453.

(i) *Humphrey's* arose when President Roosevelt fired an FTC Commissioner without specifying a cause for his removal, contrary to a statute permitting removal only for "inefficiency, neglect of duty, or malfeasance in office." §1, 38 Stat. 718. The Court ruled against President Roosevelt, distinguishing *Myers* by explaining that some presidentially appointed officials may perform "executive function[s]" but exercise "no part of the executive power," 295 U. S., at 628, and holding that the FTC's duties were "neither political nor executive, but predominantly quasi-judicial and quasi-legislative," *id.*, at 624. Because these quasi functions did not require the use of "executive power," the Court reasoned, Humphrey needed to answer only to Congress and the courts. *Id.*, at 628. Pp. 445–447.

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(ii) *Humphrey's* framework has not withstood the test of time. From the start, *Humphrey's* was tethered to a highly circumscribed view of the FTC's role. *Humphrey's* by its terms applied only to agencies that occupy "no place in the executive department," are "independent of executive authority," and exercise "no part of the executive power." *Id.*, at 625, 628. Indeed, the Court took pains to emphasize that "the character of the office"—executive or nonexecutive—would determine the result of future cases. *Id.*, at 631.

In later cases, the Court concluded that more functions fell on the executive side of that line—and thus within the President's exclusive control. Soon enough, the Court recognized that *Humphrey's* flunked even its own test. "[I]t is hard to dispute that the powers of the FTC,"

even "at the time of *Humphrey's Executor*," the Court explained in 1988, "would at the present time be considered 'executive,' at least to some degree." *Morrison* v. *Olson*, 487 U. S. 654, 690, n. 28.

In *Free Enterprise Fund* v. *Public Company Accounting Oversight Bd.*, 561 U. S. 477, and *Seila Law LLC* v. *Consumer Financial Protection Bureau*, 591 U. S. 197, the Court reiterated *Myers*'s rule that the President exercises "general administrative control of those executing the laws" and must be able to "remov[e] those for whom he can not continue to be responsible." *Free Enterprise Fund*, 561 U. S., at 492–493 (quoting *Myers*, 272 U. S., at 117, 164); *Seila Law*, 591 U. S., at 214 (same). And the Court refused to extend *Humphrey's* to "new situation[s]." *Seila Law*, 591 U. S., at 220; see *Free Enterprise Fund*, 561 U. S., at 483. At this point, all that is left of *Humphrey's* is its observation that an agency that "exercises no part of the executive power" need not fall within the rule of Presidential removal. 295 U. S., at 628. Pp. 447–450.

(iii) If anything more is left of *Humphrey's*, the Court overrules it. *Humphrey's* has for decades been a result in search of a rationale, and every relevant factor to *stare decisis*—the "quality" of the decision's reasoning, its "consistency" with the Court's other cases, the "workability" of its rule, and reliance interests, *Knick* v. *Township of Scott*, 588 U. S. 180, 203—counsels in favor of letting *Humphrey's* go.

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Slaughter relies on reliance. She argues that Congress has relied upon *Humphrey's* to create agencies that are "insulated from presidential control." Brief for Respondent 15. But that is precisely the problem. Despite what *Humphrey's* may say, independent agencies are not "independent" in the sense that they are free of the President and thus responsive "only to the people of the United States." 295 U. S., at 625. Placing the power to administer laws in officers who enjoy "freedom from Presidential oversight (and protection)" does not deliver us to a promised land of technocratic governance—it often results only in an "increased subservience to congressional direction." *FCC* v. *Fox Television Stations, Inc.*, 556 U. S. 502, 523 (plurality opinion). Pp. 450–453.

(c) With these principles in mind, the FTC's for-cause removal provision violates the separation of powers. In its present form, the FTC enforces and administers some 80 statutes covering almost every facet of the Nation's economy, and the tasks it undertakes are "the very essence of 'execution' of the law." *Bowsher* v. *Synar*, 478 U. S. 714, 733. The FTC has the power to promulgate substantive rules carrying the force of law, investigate businesses and enforce statutes through in-house adjudications, and file civil suits on behalf of the United States in federal court. The FTC unquestionably exercises executive power and must therefore be controlled by the Chief Executive. Pp. 454–455.

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(d) Because the FTC's activities fall well within the heartland of executive power, the Court has no occasion today to define the bounds of what such power entails. Not all offices created by Congress necessarily come with executive power, see, *e. g.*, *Buckley* v. *Valeo*, 424 U. S. 1, 137–138 (*per curiam*), and the Court has left open the possibility that some functions traditionally handled outside the Executive Branch may not be encompassed by *Myers*'s general rule. One example the Court has given of such an entity is the Federal Reserve, to the extent that it follows in the tradition of the First and Second Banks of the United States. See *Seila Law*, 591 U. S., at 222, n. 8. And as the Government recognizes, the permissibility of tenure protections for non-Article III courts is not presented or briefed in this case. The Court leaves those questions for another day. All the Court does today is recognize what has been clear for a century—that those who fall within the President's "general administrative control" must be removable by the President at will. *Myers*, 272 U. S., at 135. Pp. 455–456.

(e) Slaughter's counterarguments are rejected. She relies on *Humphrey's* and *stare decisis*, but she does not defend *Humphrey's* on its own terms. She does not argue that the FTC today occupies "no place in the executive department" or exercises "no part of the executive power." 295 U. S., at 628. Her historical arguments regarding early multimember agencies fail because the members of these agencies, too, were removable by the President at will.

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Slaughter ultimately proposes that the Court police Congress's decisions in this area only for "reasonableness." She argues that Congress may "reasonably" decide "that the President should be able to remove some duly appointed officers only for certain causes and through certain processes." Brief for Respondent 25 (internal quotation marks omitted). Slaughter's supposed limiting principle is neither limiting nor much of a principle. On her view, Congress could commandeer the Environmental Protection Agency, the Department of Commerce, the Department of Education, the Department of Health and Human Services, most (if not all) of the Department of Justice, and a number of other agencies besides. Indeed, if Slaughter were correct, then it is not clear why Congress would need to allow the President any say in firings at all.

Slaughter's view is incompatible with our constitutional design. Although it is up to the Senate to decide whether to confirm those with whom the President would *prefer* to work, neither Congress nor the courts may saddle him with those with whom he *cannot* work. Subordinates who exercise the President's power are subject to removal by him. Then, and only then, can they remain accountable to the President, and the President to the people. Pp. 456–464.

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Reversed and remanded.

ROBERTS, C. J., delivered the opinion of the Court, in which ALITO, GORSUCH, KAVANAUGH, and BARRETT, JJ., joined, and in which THOMAS, J., joined as to all but Part III–B. GORSUCH, J., filed a concurring opinion, *post*, p. 464. SOTOMAYOR, J., filed a dissenting opinion, in which KAGAN and JACKSON, JJ., joined, *post*, p. 480.

Solicitor General Sauer argued the cause for petitioners. With him on the briefs were *Assistant Attorney General Shumate*, *Deputy Solicitor General Harris*, *Deputy Assistant Attorney General McArthur*, *Vivek Suri*, *Mark R. Freeman*, *Michael S. Raab*, *Daniel Aguilar*, *Laura E. Myron*, and *Alex Potapov*.

Amit Agarwal argued the cause for respondents. With him on the brief were *Jared Davidson*, *Justin Florence*, *Julia L. Torti*, *Benjamin L. Berwick*, *Beau Tremitiere*, *Aaron Crowell*, *Gregory A. Clarick*, *David Kimball-Stanley*, *Laurence M. Schwartztol*, *Ephraim A. McDowell*, and *Joshua Revesz*.*

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*Briefs of *amici curiae* urging reversal were filed for the America First Legal Foundation by *Jonathan F. Mitchell* and *Gene P. Hamilton*; for the American Center for Law and Justice by *Jay Alan Sekulow*, *Jordan A. Sekulow*, *Stuart J. Roth*, *Benjamin P. Sisney*, *Kelsey E. McGee*, and *Liam R. Harrell*; for the Americans for Prosperity Foundation by *Michael Pepson*; for the Chamber of Commerce of the United States of America by *Steven A. Engel*, *Michael H. McGinley*, and *Brian A. Kulp*; for the Christian Employers Alliance by *Erin M. Hawley*, *John J. Bursch*, *Matthew S. Bowman*, *Natalie D. Thompson*, *James A. Campbell*, and *Julie Marie Blake*; for the New Civil Liberties Alliance by *Mark Chenoweth*; for the Washington Legal Foundation by *Cory L. Andrews* and *Zac Morgan*; and for Edwin Meese III et al. by *Amit R. Vora*. *William J. Olson*, *Jeremiah L. Morgan*, *Patrick M. McSweeney*, *Jeffrey C. Tuomala*, and *Michael Boos* filed a brief for America's Future et al. as *amici curiae* urging vacatur.

Briefs of *amici curiae* urging affirmance were filed for the State of Colorado et al. by *Philip J. Weiser*, Attorney General of Colorado, *David Moskowitz*, Deputy Solicitor General, and *Arthur Biller*, *Kristopher Brambila*, and *Sarah H. Weiss*, Senior Assistant Attorneys General, by *Kwame Raoul*, Attorney General of Illinois, *Jane Elinor Notz*, Solicitor General,

CHIEF JUSTICE ROBERTS delivered the opinion of the Court.

Nearly 250 years ago, the Framers decided to vest "[t]he executive Power" in one person—"a President of the United

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by *Keith Ellison*, Attorney General of Minnesota, and *Liz Kramer*, Solicitor General, by *Nicholas W. Brown*, Attorney General of Washington, and by the Attorneys General for their respective jurisdictions as follows: *Kris Mayes* of Arizona, *Rob Bonta* of California, *William Tong* of Connecticut, *Kathleen Jennings* of Delaware, *Brian L. Schwalb* of the District of Columbia, *Anne E. Lopez* of Hawaii, *Aaron M. Frey* of Maine, *Anthony G. Brown* of Maryland, *Andrea Joy Campbell* of Massachusetts, *Dana Nessel* of Michigan, *Aaron D. Ford* of Nevada, *Matthew J. Platkin* of New Jersey, *Raúl Torrez* of New Mexico, *Letitia James* of New York, *Jeff Jackson* of North Carolina, *Dan Rayfield* of Oregon, *Peter F. Neronha* of Rhode Island, *Charity R. Clark* of Vermont, and *Josh Kaul* of Wisconsin; for the American Federation of Labor and Congress of Industrial Organizations by *Matthew J. Ginsburg*, *Maneesh Sharma*, and *Darin M. Dalmat*; for Bipartisan Former Chairs of the Federal Trade Commission by *Trisha Anderson*, *Joseph Posimato*, *Katherine Van Dyck*, and *David Strauss*; for the Constitutional Accountability Center by *Elizabeth B. Wydra*, *Brianne J. Gorod*, and *Brian R. Frazelle*; for Independent Agency Board Members et al. by *Catherine M. A. Carroll*, *Bradley Girard*, *Paul R. Q. Wolfson*, *Elena Goldstein*, *Skye L. Perryman*, and *Jon Greenbaum*; for Issue One et al. by *William M. Treanor*; for the Open Markets Institute by *Jamie Crooks*; for Public Citizen by *Nicolas A. Sansone*, *Allison M. Zieve*, and *Scott L. Nelson*; for Public Knowledge by *John Bergmayer*; for the Reporters Committee for Freedom of the Press by *Bruce D. Brown* and *Lisa Zycherman*; for TechFreedom by *Corbin K. Barthold*; for Thirteen Retired Federal Judges by *Norman L. Eisen*, *Timothy J. Ford*, and *Ira Neil Richards*; for Nicholas R. Bednar et al. by *Brian A. Sutherland* and *Jessica Weisel*; for Jane Manners by *Katherine L. Pringle* and *Thomas P. Wolf*; for Legal Historian Noah A. Rosenblum et al. by *Gregory L. Diskant*; for Gwynne Wilcox by *Deepak Gupta*, *Gregory A. Beck*, and *Alisa C. Philo*; for 40 National, State, and Local Consumer, Privacy and Open Markets Groups by *F. Paul Bland*, *Seth E. Mermin*, and *David S. Nahmias*; and for 207 Members of Congress by *Jeffrey L. Fisher*, *Easha Anand*, *Brian H. Fletcher*, and *Pamela S. Karlan*.

Briefs of *amici curiae* were filed for Administrative and Constitutional Law Professors by *Alan B. Morrison*, *pro se*; for the American Antitrust Institute et al. by *Deborah A. Elman* and *Randy Stutz*; for the Bipartisan Former Commissioners of the Federal Energy Regulatory Commission